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Case Number: 24PSCV02118 Hearing Date: August 31, 2026 Dept: 6

CASE

NAME: Chana

Cao v. Dong Lin, et al.

Plaintiff-in-Intervention

Starstone National Insurance Company's Motion for Leave to File

Complaint-in-Intervention

TENTATIVE

RULING

The Court GRANTS Plaintiff-in-Intervention Starstone National Insurance Company's Motion for Leave to File Complaint-in-Intervention. Starstone National Insurance Company must file and serve its proposed complaint-in-intervention within five calendar days of this order.

Starstone National Insurance Company is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is an auto accident case. On July 2, 2024, plaintiff Chana Cao (Plaintiff) filed this action against defendants Dong Lin, CAWB Travel, Inc. (collectively, Defendants) and Does 1 to 50, alleging causes of action for motor vehicle and general negligence.

On July 28, 2026, Plaintiff-in-Intervention Starstone National

Insurance Company moved for leave to file a complaint-in-intervention. The Motion is unopposed.

LEGAL

STANDARD

“An

intervention takes place when a nonparty, deemed an intervenor, becomes a party to an action or proceeding between other persons by doing any of the following:

(1) Joining a plaintiff in claiming what is sought by the complaint...” (Code Civ. Proc., § 387, subd. (b)(1).) To intervene in an action, “[a] nonparty shall petition the court for leave to intervene by noticed motion or ex parte application.” (Id., § 387, subd. (c).)

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nonparty must be permitted to intervene if either of the following conditions are satisfied: (1) a provision of law confers an unconditional right to intervene; or (2) the person seeking intervention claims an interest related to the property or transaction that is the subject of the action and that person is so situated that the disposition of the action may impair or impede that person’s ability to protect that interest, unless that person’s interest is adequately represented by one or more of the existing parties. (Code Civ. Proc., § 387, subd. (d)(1)(A)-(B).) A court has discretionary authority to allow a nonparty to intervene “if the person has an interest in the matter in litigation, or in the success of either of the parties, or an interest against both.” (Id., § 387, subd. (d)(2).)

DISCUSSION

StarStone National Insurance Company (Intervenor) is the workers’ compensation carrier for Plaintiff’s employer, CTOUR Charter LLC. Intervenor seeks to intervene in this action under Code of Civil Procedure section 387 and Labor Code sections 3852 and 3856 for leave to file a complaint-in-intervention seeking subrogation reimbursement of the workers’ compensation benefits it has paid on Plaintiff’s behalf for injuries sustained in the course of his employment. Intervenor contends it has a direct pecuniary interest in the litigation as Plaintiff’s subrogee, that its interest is not adequately represented because its statutory lien attaches only to a judgment and not to any settlement, and that intervention is therefore the only means to protect its recovery. Intervenor further argues that intervention will not enlarge

the issues in the case and will not prejudice or delay the parties, noting that trial is not set until June 2027 and discovery is not complete.

The Court finds Intervenor's Motion persuasive. Intervenor, as the workers' compensation insurance carrier for Plaintiff's employer, CTOUR Charter LLC, and who has paid Plaintiff's workers' compensation benefits for injuries sustained during employment which are the subject of Plaintiff's claims, has an unconditional right to intervene and has a direct and immediate interest in this action. (Soleimanpour Decl., ¶ 3; see Labor Code, § 3853 [employer has right to join as plaintiff at any time before trial]; id., § 3850, subd.

(b) [employer's insurer included in definition of employer]; Code Civ. Proc., § 387, subds. (b)(1), (d)(1)(A); Reliance Ins. Co. v. Superior Ct. (2000) 84 Cal.App.4th 383, 386.) The Court further finds the proper procedures have been followed, intervention does not appear to enlarge the issues in this action, and there is no opposition to this Motion. (Id. at p. 387; see also D.I. Chadbourne, Inc. v. Superior Court (1964) 60 Cal.,2d 723, 728, fn. 4 [where nonmoving party fails to oppose a ground for a motion, "it is assumed that [nonmoving party] concedes" that ground].) Finally, Intervenor provided a proposed complaint-in-intervention. (Soleimanpour Decl., Ex. A; Code Civ. Proc., § 387, subd. (c).)

Based on the foregoing, the Court GRANTS the Motion.

CONCLUSION

The Court Plaintiff-in-Intervention Starstone National Insurance Company's Motion for Leave to File Complaint-in-Intervention. Starstone National Insurance Company must file and serve its proposed complaint-in-intervention within five calendar days of this order.

Starstone National Insurance Company
is ordered to give notice of the Court's ruling within five calendar days of this order.